

HOUSE No. 4444

The Commonwealth of Massachusetts

PRESENTED BY:

Jennifer Balinsky Armini and Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a real property exemption for disabled persons in the town of Swampscott.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>8/12/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>8/21/2025</i>

HOUSE No. 4444

By Representative Armini of Marblehead and Senator Crighton, a joint petition (accompanied by bill, House, No. 4444) of Jennifer Balinsky Armini and Brendan P. Crighton (by vote of the town) relative to a real property exemption for disabled persons in the town of Swampscott. Revenue. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a real property exemption for disabled persons in the town of Swampscott.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding clause Forty-first C of section 5 of chapter 59 of the
2 General Laws, or of any other general or special law to the contrary, the town of Swampscott
3 may grant the exemption provided for in said clause Forty-first C to applicants who are disabled
4 persons age 69 or younger who have been domiciled in the town of Swampscott for a minimum
5 of 10 consecutive years immediately prior to the time of application; provided, that they meet all
6 other qualifications contained in said clause Forty-first C. The amount of the exemption and
7 qualifications relating to gross income or a person's whole estate, as approved by the town,
8 applicable to taxpayers qualified for the exemption pursuant to said clause Forty-first C shall
9 apply to the same extent to applicants eligible in accordance with this act. For the purposes of
10 this act, disabled persons are individuals who have received a determination of disability from
11 the Social Security Administration's Disability Determination Servicers prior to the time of
12 application.

13 SECTION 2. At any time after the effective date of this act, an annual town meeting of
14 the town of Swampscott may elect not to provide in the ensuing fiscal year the exemption
15 authorized by section 1. Such an election shall be effective until the exemption is reauthorized by
16 an annual town meeting of the town of Swampscott. Except as otherwise provided in section 1,
17 clause Forty-first C of section 5 of chapter 59 of the General Laws shall apply to the grant of an
18 exemption under authority of this act.

19 SECTION 3. This act shall take effect upon its passage.